

HOUSE No. 5358

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Lawn, Jr. and Greg Schwartz

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the city of Newton to place municipal charges liens on certain properties in the city of Newton for nonpayment of any local charge, fee or fine.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>3/30/2026</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>3/30/2026</i>

HOUSE No. 5358

By Representatives Lawn of Watertown and Schwartz of Newton, a petition (accompanied by bill, House, No. 5358) of John J. Lawn, Jr., and Greg Schwartz (with the approval of the mayor and city council) that the city of Newton be authorized to place municipal charges liens on certain properties for certain non-payments in said city. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the city of Newton to place municipal charges liens on certain properties in the city of Newton for nonpayment of any local charge, fee or fine.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) The city of Newton may impose a lien on property located within the
2 city for any local charge, fee or fine that has not been paid by the due date. This lien shall be
3 known as a municipal charges lien. For purposes of this act, "local charge, fee or fine" shall
4 mean any charge, fee or fine imposed by the city pursuant to the city code, city ordinance, city
5 regulations, general or special laws or state regulations and any charge, fee or fine imposed by a
6 court payable to the city as a result of any action initiated by the city to enforce the city code,
7 city regulations, general or special laws or state regulations.

8 (b) A lien authorized pursuant to this act shall take effect upon the recording of the
9 unpaid local charge, fee or fine by parcel of land and by the name of the property owner assessed
10 for the charge, fee or fine in the Middlesex southern district registry of deeds.

11 (c) If a local charge, fee or fine that is secured by a municipal charges lien remains
12 unpaid when the city assessors are preparing a real estate tax list and warrant to be committed
13 under section 53 of chapter 59 of the General Laws, the board or officer in charge of the
14 collection of the local charge, fee or fine shall certify such charge, fee or fine to the assessors,
15 who shall add the charge, fee or fine to the tax on the property to which it relates and commit it
16 with the warrant to the collector of taxes as part of such tax.

17 (d) If the property to which such charge, fee or fine relates is tax exempt, the charge, fee
18 or fine shall be committed as the tax.

19 (e) A lien under this section may be discharged by filing in the Middlesex southern
20 district registry of deeds, a certificate from the treasurer-collector that all municipal charges, fees
21 or fines constituting the lien, together with any interest and costs thereon, have been paid or
22 legally abated.

23 (f) All costs of recording or discharging a lien under this act shall be borne by the owner
24 of the property.

25 (g) Prior to any lien being imposed for any local charge, fee or fine, a vote of the city
26 council shall be taken specifying each type of charge, fee or fine to be collected under this act.

27 SECTION 2. This act shall take effect upon its passage.